

MASTER SERVICES AGREEMENT

Document Reference: DOC-MSA-2026-ENT-001

Effective Date: September 12, 2026

Parties: CloudScale Technologies, Inc. (Vendor, a Delaware corporation) and Enterprise Solutions Global Ltd. (Customer, a United Kingdom corporation)

Overall Risk Classification: HIGH RISK (Automated Audit Score: 84/100)

RECITALS

WHEREAS, Vendor operates an enterprise cloud computing and analytics platform; and WHEREAS, Customer desires to procure enterprise cloud services subject to the terms and conditions set forth herein;

SECTION 1. CUSTOMER INDEMNIFICATION AND THIRD-PARTY DEFENSE

Customer shall defend, indemnify, and hold harmless Vendor, its affiliates, officers, directors, employees, and agents from and against any and all claims, demands, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to Customer Data or Customer's use of the Services, without limitation.

SECTION 2. TERMINATION FOR CONVENIENCE AND SUSPENSION

Vendor reserves the right to suspend or terminate this Agreement immediately upon written notice for any reason or no reason, without refund of any prepaid fees, and Vendor shall have no obligation to assist in data migration or service transition.

SECTION 3. TERM, AUTOMATIC RENEWAL AND ANNUAL PRICE ESCALATION.

This Agreement shall automatically renew for successive twelve (12) month periods unless either party provides written opt-out notice at least sixty (60) days prior to the expiration of the then-current term. Vendor may increase fees by up to fifteen percent (15%) upon each renewal.

SECTION 4. INVOICING, PAYMENT TERMS AND LATE PAYMENT ACCRUALS.

All undisputed fees and invoices are due and payable within fifteen (15) days of receipt. Overdue balances shall accrue interest at the maximum rate permitted by law or 1.5% per month, compounded monthly, plus all collection costs and reasonable legal fees incurred by Vendor.

SECTION 5. CONFIDENTIALITY AND TRADE SECRET PRESERVATION.

Each party agrees to protect the other party's Confidential Information for three (3) years following disclosure; provided, however, that trade secrets shall remain protected indefinitely. Disclosures compelled by court order or legal process are permitted provided the disclosing party gives prior written notice.

SECTION 6. INTELLECTUAL PROPERTY AND TELEMETRY LICENSING.

Vendor retains all right, title, and interest in and to the Platform, underlying algorithms, and all deliverables. Customer hereby grants Vendor a perpetual, irrevocable, royalty-free, worldwide license to use, aggregate, and analyze anonymized operational usage telemetry to enhance model performance.

SECTION 7. DATA PRIVACY AND COMPLIANCE SAFEGUARDS.

Both parties shall comply with applicable data privacy regulations, including GDPR and CCPA, maintaining appropriate technical and organizational safeguards against unauthorized processing or accidental loss.

SECTION 8. GOVERNING JURISDICTION AND BINDING ARBITRATION.

This Agreement shall be governed by the laws of the State of Delaware, United States, without regard to its conflict of laws principles. Any dispute, claim, or controversy shall be resolved exclusively by binding arbitration administered by the American Arbitration Association.

SECTION 9. CROSS-BORDER TARIFFS AND STATUTORY ALLOCATION.

In accordance with Annex IV and Section 7.2 (Force Majeure), statutory duties and international trade tariff apportionments shall be dynamically negotiated under UNCITRAL Article 79 rules.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CloudScale Technologies, Inc.: Marcus Vance, Chief Legal Officer [_____]

Enterprise Solutions Global Ltd.: Sarah Jenkins, VP Global Procurement [_____]